

26CV02042 Anthony Ornano v. Coastal Dispensary, LLC

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-09-02

Motion: 1. Defendant's Demurrer to Plaintiff's Complaint; 2. Defendant's Motion to Strike Portions of Plaintiff's Complaint

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Tentative Ruling: Anthony Ornano v. Coastal Dispensary, LLC

Case Number

26CV02042

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 09/02/2026 - 10:00

Nature of Proceedings

1. Defendant's Demurrer to Plaintiff's Complaint; 2. Defendant's Motion to Strike Portions of Plaintiff's Complaint

Tentative Ruling

For Plaintiff Anthony Ornano: Self-Represented

For Defendant Stiiizy, Inc. dba Stiiizy erroneously sued as Coastal Dispensary Inc:

Andrew K. Murphy, Sahar Attaran Bondarabadi, Clapp Moroney Vucinich Beeman Scheley

RULING

For all reasons stated herein:

The demurrer to Plaintiff's complaint is sustained with leave to amend.

The motion to strike Plaintiff's prayer for punitive damages is granted with leave to amend.

Plaintiff shall file and serve his first amended complaint, if any, no later than September 23, 2026.

Background

This action commenced on March 20, 2026, by the filing of the Judicial Council Form Complaint by Plaintiff Anthony Ornano against Defendant Coastal Dispensary, Inc. for premises liability.

The complaint simply alleges that on March 20, 2026, Plaintiff was injured on the premises by "unlawful treatment." (Compl., ¶ Prem.L-1.)

Plaintiff alleges that he suffered wage loss, loss of use of property, hospital and medical expenses, general damages, property damage, loss of earning capacity, and nervousness and emotional distress. (Compl., ¶ 11.)

Plaintiff seeks compensatory damages and punitive damages according to proof. (Compl., ¶ 14.)

Defendant demurs to the complaint on the grounds that it fails to state facts sufficient to constitute a cause of action for premises liability.

Defendant also moves to strike the prayer for punitive damages on the grounds that the complaint fails to allege facts sufficient to show that Defendant has been guilty of oppression, fraud, or malice as necessary to obtain an award of punitive damages.

Plaintiff was timely and properly served with the demurrer and the motion to strike, via U.S. Mail, but has not filed opposition or any other response to either.

Analysis

Demurrer

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the Court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc., § 430.30, subd. (a).)

"The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds:

"(a) The Court has no jurisdiction of the subject of the cause of action alleged in the pleading.

"(b) The person who filed the pleading does not have the legal capacity to sue.

“(c) There is another action pending between the same parties on the same cause of action.

“(d) There is a defect or misjoinder of parties.

“(e) The pleading does not state facts sufficient to constitute a cause of action.

“(f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.

“(g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct.

“(h) No certificate was filed as required by Section 411.35.” (Code Civ. Proc., § 430.10.)

“[A] Court must treat a demurrer as admitting all material facts properly pleaded, it does not, however, assume the truth of contentions, deductions or conclusions of law.” (Travelers Indem. Co. of Connecticut v. Navigators Specialty Ins. Co. (2021) 70 Cal.App.5th 341, 358, citing Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

“To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the Plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

As noted above, Plaintiff’s sole cause of action is for premises liability.

“Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself.” (Civ. Code, § 1714, subd. (a).)

“The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. [Citations.] Premises liability “ ‘is grounded in the possession of the premises and the attendant right to control and manage the premises” ’ ”; accordingly, “ ‘mere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act.” ’ ” [Citations.] But the duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases. [Citation.]” (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.)

Here, Plaintiff alleges no facts at all other than on March 20, 2026, he was injured by unlawful treatment. There are no allegations regarding where the property is, Defendant’s possession of the premises, any legal duty of care towards Plaintiff, any breach of a duty, or even any facts regarding what Plaintiff claims occurred.

“ ‘ “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a Defendant cannot reasonably respond.” ’ ” [Citations.]” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.)

This is one of those instances where the complaint is so incomprehensible that Defendant cannot reasonably respond.

The demurrer will be sustained.

As this is Plaintiff's first complaint, he will be given leave to amend.

Motion to Strike

Defendant seeks to strike Plaintiff's prayer for punitive damages.

"The Court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading." (Code Civ. Proc., § 436.) "Irrelevant matter" includes a "demand for judgment requesting relief not supported by the allegations of the complaint." (Code Civ. Proc., § 431.10, subds. (b)(3), (c).) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the Court is required to take judicial notice." (Code Civ. Proc., § 437, subd. (a).)

"In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.)

"[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

"In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the Defendant has been guilty of oppression, fraud, or malice, the Plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the Defendant." (Civ. Code, § 3294, subd. (a).)

"As used in this section, the following definitions shall apply:

"(1) 'Malice' means conduct which is intended by the Defendant to cause injury to the Plaintiff or despicable conduct which is carried on by the Defendant with a willful and conscious disregard of the rights or safety of others.

"(2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

"(3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the Defendant with the intention on the part of the Defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c).)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a Plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

Plaintiff fails to plead any facts that would tend to imply that he may be entitled to punitive damages. The motion to strike will be granted. Again, as this is Plaintiff's first complaint, he will be given leave to amend.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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